

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE

5 BILL NO. 1876

By: Reinhardt of the Senate

and

Tedford of the House

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9 An Act relating to service of process; amending 36
10 O.S. 2021, Sections 621 and 622, which relate to
11 service of process on foreign insurers; modifying
12 persons that may be appointed as agent; modifying
13 revocability of agent appointment; requiring certain
14 agent information be submitted to the Insurance
15 Commissioner; providing for alternate service of
16 process in certain circumstances; modifying manner of
17 service of process; updating statutory language; and
18 providing an effective date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY 36 O.S. 2021, Section 621, is
21 amended to read as follows:

22 Section 621. A. Each authorized foreign or alien insurer shall
23 appoint the Insurance Commissioner, a resident of this state, or a
24 person who is authorized to do business in this state as its agent
to receive service of legal process, other than a subpoena, issued
against it in this state upon any cause of action arising from its
transaction of business in this state. ~~The appointment shall be~~

1 ~~irrevocable, shall bind any successor and shall remain in effect as~~
2 ~~long as there is in force in this state any contract made by the~~
3 ~~insurer or obligations arising therefrom.~~

4 B. Service of such process against a foreign or alien insurer
5 shall be made only by service of process upon the ~~Insurance~~
6 ~~Commissioner~~ agent appointed pursuant to subsection A of this
7 section. Service of process against a domestic insurer may be made
8 upon the insurer in the manner provided by laws applying to business
9 entities generally, or upon the insurer's attorney-in-fact if a
10 reciprocal insurer or a ~~Lloyds~~ Lloyd's association.

11 C. Each such insurer at the time of application for a
12 certificate of authority shall file with the Insurance Commissioner
13 designation of the name and address of the person to whom process
14 against it served upon the ~~Insurance Commissioner~~ agent appointed
15 pursuant to subsection A of this section is to be forwarded. The
16 insurer may change such designation by a new filing.

17 D. Any insurer appointing a registered agent other than the
18 Insurance Commissioner shall electronically submit the name and
19 address of the registered agent in the manner and form prescribed by
20 the Commissioner along with any applicable fee. Registered agent
21 names and addresses shall be made publicly available and kept
22 current, and any changes to such information shall be submitted to
23 the Commissioner within five (5) business days of such change.
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1 E. If a person reasonably relies on the list of registered
2 agents maintained by the Insurance Commissioner pursuant to this
3 section and serves otherwise valid process on an insurance company's
4 designated registered agent, and it is later determined that the
5 registered agent listed by the Commissioner is incorrect, the person
6 may serve process upon the Commissioner. Such process shall be
7 served upon the Commissioner and a copy forwarded by the
8 Commissioner to the insurer in accordance with Section 622 of this
9 title. If the person uses due diligence to serve the Commissioner,
10 the applicable statute of limitations shall be tolled for the period
11 of time beginning when the incorrect registered agent received
12 process and ending when the Commissioner receives process.

13 SECTION 2. AMENDATORY 36 O.S. 2021, Section 622, is
14 amended to read as follows:

15 Section 622. A. Triplicate copies of legal process against an
16 insurer for whom the Insurance Commissioner is agent shall be served
17 upon the Commissioner at the principal offices of the Insurance
18 Department. When legal process against an insurer for whom the
19 ~~Insurance~~ Commissioner is agent is issued, it shall be served in
20 triplicate by any manner now provided by law or in lieu thereof by
21 mailing triplicate copies of such legal process in the United States
22 mails with postage prepaid to the ~~Insurance~~ Commissioner with return
23 receipt requested, in which event service shall be sufficient upon
24 showing of proof of mailing to the Commissioner with the return

1 receipt attached. At the time of service, the plaintiff shall pay
2 to the ~~Insurance~~ Commissioner Twenty Dollars (\$20.00), taxable as
3 costs in the action. Upon receiving service, the ~~Insurance~~
4 Commissioner shall promptly forward a copy ~~thereof~~ by mail with
5 return receipt requested to the person last so designated by the
6 insurer to receive the same.

7 B. ~~Process served upon the Insurance Commissioner and copy~~
8 ~~thereof forwarded~~ Copies of the petition and summons forwarded by
9 the Commissioner to the insurer's designated registered agent as
10 provided in this section shall constitute service upon the insurer.

11 SECTION 3. This act shall become effective November 1, 2026.

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13 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY
14 OVERSIGHT, dated 04/16/2026 - DO PASS.
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